

Line 3

Case Name: *Wells Fargo Bank, N.A. v. Saeed Alampaykar*

Case No.: 24CV454356

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) moves under Code of Civil Procedure Sections 2033.010, 2033.020, 2033.250, 2033.280, and 2033.430 to deem the truth of all matters specified in the Requests for Admissions, Set One, served on September 17, 2025, to be admitted by Defendant Saeed Alampaykar (“Defendant”). Notice of Motion (the “Motion”) at 1:21-24 (filed Dec. 12, 2025).

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Plaintiff served the Requests for Admissions, Set One, on Defendant on September 17, 2025. Declaration of attorney Pearse F. Early In Support of Motion (“Early Decl.”) at ¶ 1 & Exhibit A thereto.

Defendant never responded to the Requests for Admissions, Set One, despite his obligation to respond under Code of Civil Procedure Section 2033.240. Early Decl. at ¶ 2.

Because Defendant failed to respond, Plaintiff now moves for an Order under Code of Civil Procedure Section 2033.280 deeming admitted by Defendant the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One. C.C.P. 2033.280 (b). Plaintiff’s Memorandum of Points & Authorities in Support of Motion at 1:23-2:7.

The Motion is well supported by the law, well supported by the facts set forth in the Early Declaration, and reasonable in all respects.

Moreover, Defendant has failed to oppose the Motion, which the Court views as Defendant conceding the Motion. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).)

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, it is hereby **ORDERED that the truth of all matters specified in Plaintiff’s Requests for Admissions, Set One, served on Defendant on September 17, 2025, is deemed admitted by Defendant Saeed Alampaykar.**

SO ORDERED.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 4

Case Name: *Keep America Safe and Beautiful v. General Printing & Design, Inc., et al.*

Case No.: 25CV473892

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Keep America Safe and Beautiful (“Plaintiff”) moves under Code of Civil Procedure Section 664.6 and Health and Safety Code Section 25249.7(f) for an Order approving the Settlement and entry of the “[Proposed] Judgment Pursuant to the Terms of Proposition 65 Settlement and Consent Judgment.” Notice of Motion (the “Motion”) at 1:18-25 (filed: Jan. 21, 2026).

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

The parties here have acted in an exemplary manner by efficiently, effectively, and professionally:

- negotiating and entering a Proposition 65 Settlement (the “Settlement”), and
- submitting a proposed Consent Judgment, setting forth the terms and conditions of the Settlement, which provides appropriate remedies and well serves the public interest.

The parties in this Motion ask the Court to approve the Settlement and sign and enter the proposed Consent Judgment.

Also, in connection with this Settlement, the parties have negotiated and agreed that Defendant General Printing & Design, Inc. (“Defendant”) will pay Plaintiff for Plaintiff’s attorneys’ fees and costs in the total amount of \$26,272.33, which the parties ask the Court to find reasonable and approve now.

Moreover, in due compliance with California law, the parties have provided copies and proper notice of the proposed Consent Judgment to the Office of the California Attorney General,³ which has not opposed this Motion. Indeed, no one opposes this Motion.

³ See Affidavit of Compliance with California Code of Regulations, title 11, § 3000 *et seq.* (filed: Jan. 21, 2026, signed under penalty of perjury by attorney Laralei Paras).